

Resolution Agreement #05-20-2348
Ivy Tech Community College

Ivy Tech Community College (College) submits the following agreement to the U.S. Department of Education, Office for Civil Rights (OCR), in resolution of OCR complaint #05-20-2348. The College submits this agreement to ensure its compliance with Section 504 of the Rehabilitation Act of 1973 (Section 504), 29 U.S.C. § 794, and its implementing regulation at 34 C.F.R. Part 104, and Title II of the Americans with Disabilities Act of 1990 (Title II), 42 U.S.C. §§ 12131-12134, and its implementing regulation at 28 C.F.R. Part 35, with respect to the issues raised in the complaint.

The College agrees to the following:

1. By November 16, 2020, the College will recalculate Student A's grade in the [Redacted Content]. The College will advise Student A of the recalculated grade and will give him the choice to accept the revised grade or retain his original grade in the class. Upon receiving his decision, the College will adjust Student A's final grade on his transcript, if a change is required.

REPORTING REQUIREMENT: By November 20, 2020, the College will provide documentation to OCR that it has implemented item #1 of this Agreement, including a copy of Student A's updated transcript, if applicable, and an explanation of grading criteria used in the class.

2. By November 16, 2020, the College will offer Student A the opportunity to have his final grades in [Redacted Content] stand or to have these courses removed from his transcript and/or to retake these courses at no cost in the earliest available semester, with the appropriate academic adjustments, modifications, and/or auxiliary aids. In presenting these options to Student A, the College will explain the financial aid implications of selecting each option.

REPORTING REQUIREMENT: By November 20, 2020, the College will provide documentation to OCR that it has made the offer required by item #2 of this Agreement and Student A's response. By June 15, 2021, if Student A has chosen to retake either or both courses in the 2020-2021 academic year, the College will provide OCR documentation of the provision of appropriate academic adjustments, modifications, and/or auxiliary aids to Student A in each course and notify OCR of the final grade earned by Student A in the retake of the course(s).

3. By December 17, 2020, the College will review and revise the process it uses at its [Redacted Content] campus for finding, hiring and retaining [Redacted Content] used to provide academic adjustments to students with disabilities, including the time it takes to obtain [Redacted Content], and will identify any steps it will take to enhance its ability to hire and retain [Redacted Content].

REPORTING REQUIREMENT: By January 15, 2021, the College will provide documentation to OCR that it has completed the assessment required by item #3 of this Agreement.

4. By December 17, 2020, the College will review and revise its policies and procedures for providing auxiliary aids for [Redacted Content] students on short notice at its [Redacted Content] campus, and will identify any steps it will take to enhance its ability to provide such services to students and to offer effective alternative should necessary services become unavailable.

REPORTING REQUIREMENT: By January 15, 2021, the College will provide documentation to OCR that it has completed the assessment required by item #4 of this Agreement.

5. By December 17, 2020, the College will provide training to all DSS staff at its [Redacted Content] campus on the College's policies and procedures for documenting which adjustments are approved and the process used to ensure that students with disabilities are not denied services when they dispute the effectiveness of their adjustments.

REPORTING REQUIREMENT: By January 15, 2021, the College will provide documentation to OCR that it has completed the training required by item #5 of this Agreement, including the identity of the trainer, the material used in the training and the list of attendees.

The College understands that by signing this Agreement, it agrees to provide data and other information in a timely manner in accordance with the reporting requirements of this agreement. Further, the College understands that during the monitoring of this Agreement, if necessary, OCR may visit the College, interview staff and students, and request such additional reports or data as are necessary for OCR to determine whether the College has fulfilled the terms of this Agreement. Upon completion of the obligations under this Agreement, OCR will close this case.

The College understands and acknowledges that OCR may initiate administrative enforcement or judicial proceedings to enforce the specific terms and obligations of this Agreement. Before initiating administrative enforcement or judicial proceedings to enforce the specific terms and obligations of this Agreement, OCR shall give the College written notice of the alleged breach and sixty (60) calendar days to cure the alleged breach.

This Agreement will become effective immediately upon the signature of the College's representative below.

Chancellor or designee

Date